

Complaints Policy - Cozy Corner Care Limited

Introduction

This policy sets out the values, principles and procedures that underpin Cozy Corner Care Limited's approach to receiving, investigating and responding to complaints. It supports compliance with Regulation 16: Receiving and Acting on Complaints and, where applicable, Regulation 20: Duty of Candour of the Health and Social Care Act 2008 (Regulated Activities) Regulations 2014.

Cozy Corner Care Limited is committed to making it easy for people to provide feedback, raise concerns or make complaints about the care and support they receive. Complaints will be treated seriously, fairly and sensitively, and will be used as an opportunity to identify learning and improve the quality of our services.

People who use our service, their representatives and others acting on their behalf must be able to raise concerns without fear of discrimination, disadvantage or any adverse effect on the care they receive.

To be compliant with this regulation, Cozy Corner Care Limited will:

- bring the complaints system to the attention of people who use the service and people acting on their behalf in a suitable manner and format. This is provided to new clients and their representatives at the start of a package of care and will be provided in accessible formats in line with recorded communication needs
- facilitate the making of complaints when one is being made
- acknowledge and investigate all verbal and written complaints and (where relevant), work with other services where the complaint is of a joint nature to address the issues raised
- ensure that people who use the service have access to and the help of an independent advocacy service, which they might need to make a complaint where they lack the capacity or means to make the complaint without such assistance; an advocate can assist the person at all stages in the complaints process (Cozy Corner Care Limited has a separate policy on Advocacy).

Where appropriate, Cozy Corner Care Limited will also refer users to the leaflet published by the Care Quality Commission (CQC), *How to Complain About a Health or Social Care Service*.

Related Policies

This policy should be read alongside the following Cozy Corner Care Limited policies and procedures, where relevant:

- Duty of Candour Policy
- Safeguarding Adults Policy
- Quality Assurance and Improvement Policy
- Escalation Procedure
- Advocacy Policy
- Accessible Information Policy
- Data Protection and Confidentiality Policy

Policy Statement

Cozy Corner Care Limited believes that people who use our service, their representatives, relatives and others acting in their interests should be able to raise concerns or make complaints easily and without fear of disadvantage.

We welcome feedback and complaints as opportunities to learn, improve our services and identify where changes may be required. Complaints will be acknowledged, investigated and responded to openly, fairly and sensitively.

Information about how to make a complaint will be made available to people using our service and their representatives in an accessible format appropriate to their communication needs. Where appropriate, we will support access to independent advocacy.

Making a complaint will not adversely affect a person's care, support or relationship with Cozy Corner Care Limited.

Cozy Corner Care Limited understands that it must always be open and transparent with the people receiving its care and those closely involved in their care. This is reflected in our Statement of Purpose and our approach to leadership and management and in all of the service's relationships with its users and others involved in their care and treatment.

Cozy Corner Care Limited understands that it owes a duty of candour particularly when things go wrong with people's care and treatment. Thus, it recognises that whenever an incident has occurred, which must be notified to the Care Quality Commission (CQC)

Care Funded or Commissioned by a Local Authority

Cozy Corner Care Limited remains responsible for investigating and responding to complaints relating to the care and services it provides.

Where care is commissioned or funded by a local authority, including through a Direct Payment arrangement, Cozy Corner Care Limited will cooperate with the relevant authority where this is appropriate and lawful.

Information will only be shared with commissioners or other external organisations where there is a lawful basis to do so and where the information shared is necessary and proportionate.

Where the complaint relates partly to the actions of Cozy Corner Care Limited and partly to another organisation, we will work with that organisation, where appropriate, to support a coordinated response.

If a complaint raises a safeguarding concern, Cozy Corner Care Limited will act in accordance with its Safeguarding Policy and make any required referral or notification.

Principles of Complaints Handling

Cozy Corner Care Limited will:

1. Make information about how to raise a concern or complaint readily available and accessible.
2. Accept complaints verbally, in writing, by email or through an authorised representative.
3. Ensure staff know how to recognise, record and escalate complaints.
4. Acknowledge formal complaints within 2 working days.
5. Aim to complete the investigation and provide a full response within 28 days.
6. Inform the complainant if an investigation cannot reasonably be completed within 28 days, explain the reason for the delay and provide an expected completion date.
7. Deal with complaints fairly, objectively, sensitively and confidentially.
8. Take necessary and proportionate action without delay where a complaint identifies a failure, safety concern or risk to a person receiving care.
9. Keep the complainant appropriately informed throughout the process.
10. Provide information about how the complaint may be escalated if the complainant remains dissatisfied.

The Registered Manager has overall responsibility for the administration of the complaint's procedure.

Registered Manager: **Thu Aung**

Telephone: **0203 924 3451**

Email: **thu.aung@cozycornercare.com**

Stage one: local resolution

Cozy Corner Care Limited will seek to resolve concerns promptly and at the most appropriate level wherever possible.

Formal complaints will be acknowledged within 2 working days. The Registered Manager, or another suitably appointed person, will arrange for the complaint to be investigated in proportion to its nature and seriousness.

Cozy Corner Care Limited aims to provide a full response within 28 days of receiving the complaint.

Where the investigation cannot reasonably be completed within 28 days, the complainant will be informed of the reasons for the delay, the progress made and the expected timescale for completion.

Where a complaint identifies an immediate risk to a person's safety or wellbeing, appropriate protective or remedial action will be taken without waiting for completion of the formal complaints investigation.

Escalation of a Complaint

If the complainant remains dissatisfied after Cozy Corner Care Limited has completed its complaints process, they will be informed of the appropriate external route available to them.

Complaints relating to adult social care may be referred to the Local Government and Social Care Ombudsman (LGSCO) where applicable.

Where care is commissioned or funded by a local authority, including through a Direct Payment arrangement, the complainant may also raise relevant concerns with that authority.

Cozy Corner Care Limited will cooperate with any lawful external review or investigation and provide relevant information where required.

Role of the Care Quality Commission

The Care Quality Commission (CQC) regulates registered health and social care services in England. The CQC does not normally investigate individual complaints on behalf of complainants, but it welcomes information about concerns relating to registered services and may use this information as part of its regulatory activity.

Cozy Corner Care Limited will provide information about complaints to the CQC where required by law or where requested by the CQC in accordance with its regulatory powers.

Safeguarding Concerns

Where a complaint includes an allegation or suspicion of abuse, neglect or another safeguarding concern, the matter will be managed in accordance with Cozy Corner Care Limited's Safeguarding Policy.

Immediate action will be taken where necessary to protect the person from harm. Appropriate referrals will be made to the relevant local authority safeguarding team and notifications will be made to the CQC or other bodies where legally required.

Any internal investigation will take account of safeguarding enquiries being undertaken by external agencies and will not interfere with or prejudice those enquiries.

Processes for complaints about the Registered Manager

Where a complaint concerns the conduct, actions or performance of the Registered Manager, responsibility for managing the complaint will be transferred to the Nominated Individual.

The Nominated Individual may investigate the matter directly or appoint a suitably competent and independent person to undertake the investigation where appropriate.

Nominated Individual: **Angela Kimani**

Telephone: **0203 924 3451**

Email: **angela@cozycornercare.com**

If the complainant remains dissatisfied following completion of the process, they will be informed of the appropriate external escalation route.

Verbal Complaints

All verbal concerns and complaints must be treated seriously, respectfully and sensitively.

Where possible, staff should try to resolve a straightforward concern immediately. Staff must not become defensive, dismiss the concern or blame another member of staff.

If the concern cannot be resolved immediately or if it is serious, the member of staff must report it to the Registered Manager or appropriate manager without delay.

The concern, action taken and any escalation must be accurately recorded.

A person will not be required to put a complaint in writing before Cozy Corner Care Limited will consider it. Verbal complaints will be handled appropriately in the same way as written complaints where formal investigation is required.

Where a complaint is made by a representative or third party, confidentiality and consent requirements must be respected. Information about the person receiving care will only be disclosed where there is appropriate consent, lawful authority or another lawful basis for disclosure.

Written Complaints

Cozy Corner Care Limited adopts the following procedures for responding to written complaints, which might be made by letter or on a form which Cozy Corner Care Limited makes available.

Preliminary steps

1. Written complaints may be submitted by letter or email and will be recorded in the complaints log.
2. An acknowledgement will be sent within 2 working days.
3. The complainant will be informed of the complaints process and, where appropriate, the anticipated timescale.
4. The Registered Manager will normally oversee the investigation unless the complaint concerns the Registered Manager, in which case the Nominated Individual will take responsibility.
5. Further information may be requested whether this is necessary to understand or investigate the complaint.
6. Where a complaint is made by a representative, consent or lawful authority will be considered before confidential information is disclosed.
7. Cozy Corner Care Limited may obtain independent, professional or legal advice where necessary to investigate or respond appropriately to the complaint.

Investigation of a complaint (other than safeguarding)

Investigations will be proportionate to the nature, seriousness and complexity of the complaint.

Cozy Corner Care Limited will aim to complete the investigation and provide a full response within 28 days.

The investigation may include reviewing care records, electronic records, medication records, rotas, incident reports and other relevant documentation; speaking with staff and other relevant people; and obtaining further information from the complainant where required.

Where the investigation cannot reasonably be completed within 28 days, the complainant will receive an update explaining the reason for the delay, progress made and the expected date of completion.

Any immediate safety concerns identified during the investigation will be acted upon without delay.

Outcome of the Complaint

On completion of the investigation, Cozy Corner Care Limited will provide the complainant with a clear response setting out:

- the issues investigated
- the findings
- any actions already taken or proposed
- any learning identified
- an apology where appropriate
- how the complainant may escalate the matter if they remain dissatisfied.

The outcome may be provided in writing and, where appropriate, discussed at a meeting or by telephone or video call.

Duty of candour

Cozy Corner Care Limited is committed to being open and transparent with people receiving care and, where appropriate, their representatives when something goes wrong with their care or treatment.

Where a complaint or investigation identifies an incident that may meet the requirements of the Statutory Duty of Candour under Regulation 20, the Registered Manager will ensure that the matter is considered and managed in accordance with Cozy Corner Care Limited's Duty of Candour Policy.

Where the statutory Duty of Candour applies, Cozy Corner Care Limited will:

- inform the person receiving care, or their relevant representative where appropriate, about what has happened;
- provide an accurate account of the known facts and explain any further enquiries or investigations;
- provide reasonable support to those affected;
- offer an appropriate apology;
- explain any action being taken to reduce the risk of recurrence; and
- keep an accurate written record of the communication and actions taken.

Where the person is able to make decisions about their care, information will be shared with others in accordance with their consent and wishes. Where the person lacks capacity in relation to the relevant decision, communication and involvement will be managed in accordance with the Mental Capacity Act 2005 and with any person who has lawful authority to act on their behalf.

Full requirements for identifying and responding to a notifiable safety incident are set out in Cozy Corner Care Limited's separate Duty of Candour Policy, which should be read alongside this policy.

Data Protection and Confidentiality

Personal information collected or created as part of the complaints process will be handled in accordance with the UK General Data Protection Regulation (UK GDPR), the Data Protection Act 2018 and Cozy Corner Care Limited's data protection policies.

Cozy Corner Care Limited will only collect and use information that is necessary for the investigation and management of the complaint.

Access to complaint records will be restricted to authorised persons with a legitimate need to know.

Information may be shared with relevant external organisations, including commissioners, safeguarding authorities, the Care Quality Commission (CQC), the Local Government and Social Care Ombudsman (LGSCO), insurers, legal advisers or other appropriate bodies, where there is a lawful basis and the disclosure is necessary and proportionate.

Confidential information will not otherwise be disclosed without appropriate consent, lawful authority or another lawful basis for disclosure.

Complaint records will be accurate, securely stored and retained in accordance with Cozy Corner Care Limited's records management and retention requirements.

Requests relating to personal information held within complaint records will be managed in accordance with Cozy Corner Care Limited's Data Protection and Subject Access Request procedures.

Follow-up, Learning and Improvement

Cozy Corner Care Limited will maintain an accurate record of complaints, investigations, outcomes and actions taken.

Where remedial action is identified, responsibility and timescales for completion will be recorded and monitored.

Complaints will be reviewed by the management team to identify themes, recurring concerns and opportunities for improvement.

Learning arising from complaints will be incorporated into service improvement activity, staff communication, supervision, training, policies and procedures where appropriate.

Complaint information will be reviewed as part of Cozy Corner Care Limited's quality assurance and governance arrangements.

Training

All staff will receive information and training appropriate to their role in recognising, responding to, recording and escalating complaints.

Complaints handling will form part of staff induction and will be reinforced through supervision, refresher training and service learning where appropriate.

Staff with responsibility for investigating or managing complaints will receive additional guidance and support appropriate to their responsibilities.

Policy Review

Person Responsible:	Thu Aung - Registered Manager
Approved by:	Cozy Corner Care Limited Management Team
Effective Date:	30/09/2026
Next Review Date:	22/12/2026
